

permitted under R. 80 EPC (as it was occasioned by Art. 100(c) EPC) automatically constituted a breach of Art. 123(3) EPC. It noted that R. 80 EPC was satisfied if the patent documents were amended to overcome a potentially relevant ground for opposition and that, in the case in hand, the scope of protection had not been extended.

b) Amendments intended to remedy a lack of clarity

Objections to the clarity of claims or any consequent requests for amendment are only relevant to opposition proceedings in so far as they can influence the decisions on issues under Art. 100 EPC or arise in relation to the subject-matter to be amended as a consequence of such issues (T 127/85, OJ 1989, 271).

According to the established case law of the boards of appeal, Art. 84 EPC is an EPC requirement that has to be taken into account in opposition proceedings whenever the patent proprietor files any amendments (within the limits set in G 3/14, OJ 2015, A102; see in this chapter IV.C.5.2.2). However, Art. 84 EPC is not itself a ground for opposition under Art. 100 EPC. Irrespective of how the granted claims are formulated, and be they dependent or independent, an opposition cannot be lodged on the basis that they lack clarity (T 23/86, OJ 1987, 316; T 565/89; T 89/89; T 16/87, OJ 1992, 212; T 1835/08; T 1855/07). The board in T 89/89 followed the findings in decision T 295/87 (OJ 1990, 470) according to which amendments during opposition proceedings should only be considered as appropriate and necessary in the sense of R. 57(1) and 58(2) EPC 1973 and therefore admissible if they can fairly be said to arise out of the grounds of opposition (confirmed in T 792/95; now "occasioned by a ground for opposition" is a requirement under R. 80 EPC).

In T 2122/17 the board agreed with the parties that a lack of clarity under Art. 84 EPC arose from granted claim 8 because it contained an option that conflicted with a feature in granted claim 1. However, it considered that granted claim 8 also fell foul of the requirements of Art. 83 and 100(b) EPC. Deleting claim 8 was therefore justified on the basis of Art. 83 and 100(b) EPC and so by a ground for opposition. As provided in R. 80 EPC, the ground for opposition (here: Art. 100(b) EPC) did not have to have been invoked by the opponent.

c) Filing of new dependent or independent claims

(i) Filing of new dependent claims (sub-claims)

As explained in T 829/93 and T 317/90, the addition of a dependent claim is not a response to an objection that the claimed subject-matter is not patentable because it neither limits nor amends the subject-matter claimed in the relevant independent claim. The fact that dependent claims can serve as an important safety net should the corresponding independent claim ultimately be refused does not render it legitimate to add them to a remaining, broader independent claim in opposition proceedings. See also T 313/98, which cited T 829/93 in the context of R. 57a EPC 1973.

In T 340/10, the board reiterated that, in accordance with R 80 EPC and the boards' settled case law, amendments to the text of a granted patent during opposition proceedings were considered appropriate and necessary, and so admissible, only if they were aimed at overcoming a ground for opposition under Art. 100 EPC (see e.g. T 317/90, T 794/94, T 674/96). In line with earlier case law, it explained that adding dependent claims was not, however, an answer to an objection that the claimed subject-matter was not patentable, because they neither limited nor amended the subject-matter of the related independent claim and so had no effect on its scope. It therefore considered the amendments to contravene R 80 EPC.

(ii) Filing new independent claims

In T 610/95 the board referred to G 1/84 (OJ 1985, 299), which made it clear that the opposition procedure was not designed to be an extension of the examination procedure. It would, in the board's opinion, contravene the principles set out in G 1/84 if it was considered admissible to amend the text of a granted patent during opposition proceedings, while maintaining the sole independent claim under opposition, by incorporating an additional new independent claim which as such had no counterpart in the granted patent. See also T 2063/15 (summarised below).

In T 223/97 the board confirmed that the addition during opposition proceedings of one or more independent claims while maintaining the main claim in question could not be considered to be a restriction to the main claim in order to meet the ground for opposition raised against it. However, the replacement of one independent claim as granted by several, for example two, independent claims each directed to a respective specific embodiment covered by the independent claim as granted was admissible if the replacement was occasioned by grounds for opposition. See also T 428/12.

Referring to the above decisions, the board held in T 181/02 that only in **exceptional cases** could the replacement of a granted single independent claim by two or more independent claims be occasioned by a ground for opposition, for example where a granted independent claim covered two specific embodiments. Such a situation might also arise if two granted dependent claims (e.g. claims 2 and 3) were linked in parallel to a single independent claim (claim 1). Then the filing of two independent claims (e.g. including the features of claims 1 and 2, and 1 and 3) might be possible (moreover thereby decreasing the number of claims). However, it was normally sufficient for the patentee to remain with a single independent claim solely by modifying the granted claim once, i.e. by adding one or more features to the granted single independent claim. See also T 1689/12; see further T 1810/14, where the board defined a further situation in which the replacement of a granted sole independent claim by two independent claims may be admissible.

Citing the above case law, the board in T 263/05 (OJ 2008, 329) added that, when examining the amendments, it did not have to decide whether the ground for opposition would occasion the replacement of a granted single independent claim by two or more independent claims only in "exceptional cases". Rather, it had to be asked in each individual case whether the proposed amendments were an **appropriate and necessary** response designed to avoid revocation of the patent and could thus be regarded as

occasioned by the grounds for opposition. See also T 428/12 and T 2063/15 (summarised below).

In T 937/00 the board saw **no objection in principle** to a patentee amending its claims in response to an opposition so that they comprise several independent claims directed to different subject-matters originally covered by a single generic claim of a given category, when such claim cannot be maintained. However, the board noted that the filing of multiple independent claims directed to different inventions might **unduly complicate and delay** the opposition procedure, in particular when this filing was followed by a series of further amendments. An efficient and possibly complete examination of the opposition might for instance become virtually impossible if subsequent amendments were proposed in a piecemeal way rather than addressing all the objections raised by the other party as soon as these objections arose. See also T 2290/12, in which the board considered it legitimate to seek to cover parts of an initially granted claim later found by the opposition division to lack inventive step by including them in a series of independent claims so long as this did not amount to an abuse of procedure and the number of independent claims was not unreasonably high.

In T 1/05 the board did not regard the introduction of product-by-process claims as an amendment occasioned by a ground for opposition. The submission of such claims demonstrated that these amendments were not directed to addressing a ground for opposition but were intended to compensate for the effects of an amendment that had been made to address such a ground, namely deletion of the product claims.

In T 2063/15 the request at issue comprised two independent claims. However, whilst claim 2 was based on a combination of claims 1 and 9 as granted, claim 1 was based on a combination of claims 1 and 2 as granted and also additional features taken **from the description**. The board explained that, with the subject-matter of claim 1 as granted having been found not to be novel, one or more independent claims based on a combination of claim 1 as granted with features of granted claims dependent upon claim 1 could be understood to be occasioned by the ground for opposition under Art. 100(a) EPC. However, with reference to G 1/84 (OJ 1985, 299), T 610/95 and T 223/97, the board held that the inclusion of the additional independent claim 1 was no longer simply occasioned by a ground for opposition, since this ground was already addressed through the filing of independent claim 2; the additional independent claim 1 furthermore introduced claimed subject-matter which had no counterpart in the claims of the granted patent.

Likewise in T 1764/17 the board emphasised that the replacement of a granted single independent claim by two or more independent claims could only in exceptional cases be considered to be occasioned by a ground for opposition. An exception could arise if two granted dependent claims were linked in parallel to a single independent claim. Then the filing of two independent claims including each one of the two parallel claim combinations might be possible, thus allowing separate fragments of the scope of protection afforded by the patent as granted to be retained. However, this exception did not apply to the addition of an independent claim directed at an aspect of the invention that was not included in the granted set of claims. In the case in hand, at least one of the two independent claims was directed at subject-matter that incorporated new features extracted from the description,

which could moreover be material for the issue of patentability. These independent claims were thus not straight combinations of granted claims and the above exception did not apply.

5.1.3 Amendments occasioned by national prior rights

In T 15/01 (OJ 2006, 153) the board made it clear that the general purpose of R. 57a EPC 1973 (R. 80 EPC) was to allow amendments only where they were made to overcome an objection against the validity of the European patent. It followed from the reference to R. 87 EPC 1973 (R. 138 EPC) that, within the framework of the centralised opposition procedure before the EPO, amendments were also to be allowed where the patentee intended to overcome a possible ground of invalidity which only existed in respect of a particular contracting state. Thus, R. 57a EPC 1973 was not infringed by the formulation of a separate set of claims for a contracting state in which, due to a reservation made under Art. 167(2)(a) EPC 1973, certain product claims as granted would be considered invalid or ineffective.

5.1.4 Timeframe for filing amendments

a) Discretionary decision to admit or not admit amendments – legal basis

Unlike R. 137(3) EPC (R. 86(3) EPC 1973), R. 80 EPC (R. 57a EPC 1973) does not specify a point in time up to which the proprietor may amend the description, claims and drawings in accordance with the requirements of this provision.

According to the case law of the boards of appeal, however, the proprietor has no right to have amendments admitted at any stage of the opposition proceedings that it chooses. Proposed amendments may be disregarded in particular if submitted late in the proceedings (for early decisions setting out this principle, see e.g. T 153/85, OJ 1988, 1; T 406/86, OJ 1989, 302; T 295/87, OJ 1990, 470; T 132/92). The boards have derived this principle from different legal provisions.

Early decisions derived the discretion of the opposition division from Art. 101(2) EPC 1973 read together with R. 57(1) and 58(2) EPC 1973 (see e.g. T 406/86, OJ 1989, 302; T 132/92).

In T 382/97 the board explained that R. 57a EPC 1973 (R. 80 EPC) and R. 71a EPC 1973 (R. 116 EPC) together governed the procedural preconditions for amendments to a patent by its proprietor before the opposition division, which amendments of course had to comply with Art. 123(2) and (3) EPC 1973; R. 57a EPC 1973 (R. 80 EPC) created the legal basis for amendment, and R. 71a EPC 1973 (R. 116 EPC) governed the deadline for doing so.

Likewise in T 688/16 the board held that discretion not to admit late-filed requests was conferred by R. 116(2) EPC. That discretion was **conditional on a communication** stating that grounds prejudiced the maintenance of the patent. In the case at issue, however, the opposition division had not issued any such negative communication but only

one stating its provisional opinion that none of the grounds for opposition prejudiced maintenance of the patent as granted (distinguished in T.966/17).

In many decisions the boards have relied on Art. 114(2) EPC (sometimes in conjunction with R. 71a EPC 1973 or R. 116 EPC as its implementing provision) as the legal basis for the opposition division's discretion to disregard late-filed requests (see in particular T.1105/98, which cited the preparatory documents to R. 71a EPC 1973, without however distinguishing between paragraphs 1 and 2 of R. 71a EPC 1973; see also e.g. T.4/98, T.171/03, T.811/08, T.1351/10, T.2069/11, T.66/12, T.1214/12, T.2385/12, T.487/13, T.108/14, T.2332/15; for recent decisions, see e.g. T.44/17, T.350/17 and T.879/18). T.1855/13 subsumed "submissions" (here the first auxiliary request) under the term "facts" in Art. 114(2) EPC. For the contrary view according to which Art. 114(2) EPC cannot serve as a basis for the opposition division's discretion to admit or refuse requests, see, however, T.755/96, T.281/99, T.688/16, T.754/16.

In T.755/96 the board held that the power of the opposition division to accept or refuse late-filed new facts or evidence was governed by Art. 114(2) EPC 1973, the discretionary power to refuse new requests for amendments by Art. 123 EPC 1973 and the corresponding implementing regulations, i.e. R. 57a EPC 1973 (R. 80 EPC) (see also T.1903/13, which cites Art. 123(1) EPC as the legal basis for the discretion of the boards in opposition appeal proceedings). Several recent decisions have likewise considered Art. 123 EPC (albeit in conjunction with R. 79(1) and 81(3) EPC) to be the legal basis for this discretion: T.966/17, R. 6/19 and T.256/19 (J. 14/19 stated that Art. 123(1) EPC could serve as an additional legal basis besides Art. 114(2) EPC).

In T.966/17 the board considered that the opposition division's discretion in deciding whether to admit amended claims followed in essence from Art. 123(1) EPC (first sentence) in conjunction with R. 79(1) and 81(3) EPC and stated the following reasons. Art. 123(1) EPC provided that a European patent application or a European patent could be amended in proceedings before the EPO in accordance with the Implementing Regulations. In opposition proceedings, R. 79(1) EPC allowed the patent proprietor to amend the description, claims and drawings within a period set by the opposition division. Later amendments, by contrast, were admissible only at the opposition division's discretion, as was clear from R. 81(3) EPC for instance ("shall, where necessary, be given the opportunity").

In R. 6/19 the Enlarged Board of Appeal held that the basis for an opposition division's discretion to admit or not admit claim requests was Art. 123(1) EPC. Analysing the wording of this article, the Enlarged Board observed that the first sentence states the general possibility to carry out amendments in patent applications and in patents, but only in accordance with the provisions of the Implementing Regulations (R. 81(3) EPC for opposition proceedings). It also noted that the second sentence of Art. 123(1) EPC explicitly provides applicants with a right to at least one opportunity to amend an application and remarked that, were the first sentence of Art. 123(1) EPC to mean that the patent proprietor or applicant always has the right to amend their patent or application, the second sentence of Art. 123(1) EPC would be redundant. The Enlarged Board pointed out that the right, found in the second sentence of Art. 123(1) EPC, to at least one opportunity